

Adhaar Authentication for Good Governance (Social Welfare, Innovation, Knowledge) Rules, 2020

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Union of India - Act

Adhaar Authentication for Good Governance (Social Welfare, Innovation, Knowledge) Rules, 2020

UNION OF INDIA

India

The Aadhaar (Targeted Delivery of Financial and Other Subsidies, Benefits and Services) Act, 2016

Adhaar Authentication for Good Governance (Social Welfare, Innovation, Knowledge) Rules, 2020

Rule G-S-R-490-E- of 2020

Published in Gazette of India : Extraordinary 385 on 5 August 2020

Commenced on 5 August 2020

[This is the version of this document from 5 August 2020.]

G.S.R.490(E).?In exercise of the powers conferred by sub ? section (1) of section 53 read with clause (aa) of sub-section (2) of section 53 of the Aadhaar (Targeted Delivery of Financial and Other Subsidies, Benefits and Services) Act, 2016 (18 of 2016), the Central Government, in consultation with Unique Identification Authority of India, hereby makes the following rules, namely:?

1.

Short title and commencement.?

(1)

These rules may be called the Aadhaar Authentication for Good Governance (Social Welfare, Innovation, Knowledge) Rules, 2020.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.? In these rules, unless the context otherwise requires,??

(a)

?Act? means the Aadhaar (Targeted Delivery of Financial and Other Subsidies, Benefits and Services) Act, 2016 (18 of 2016);

(b)

?Authority? means the Unique Identification Authority of India established under sub-section (1) of section 11 of the Act;

(c)

Words and expressions used and not defined in these rules shall have the same meaning assigned to them in the Act or in the Information Technology Act, 2000 (21 of 2000).

3.

Purposes for Aadhaar authentication.?

(1)

The Central Government may allow Aadhaar authentication by requesting entities in the interest of good governance, preventing leakage of public funds, promoting ease of living of residents and enabling better access to services for them, for the following purposes, namely:?

(a)

usage of digital platforms to ensure good governance;

(b)

prevention of dissipation of social welfare benefits; and

(c)

enablement of innovation and the spread of knowledge.

(2)

Aadhaar authentication under sub-rule (1) shall be on a voluntary basis.

4.

Preparation of proposal.?

The Ministry or the Department of the Government of India or the State Government, as the case may be, desirous of utilising Aadhaar authentication for a purpose specified in rule 3 shall prepare a proposal with justification in regard to such purpose for which Aadhaar authentication is sought and submit the same to the Central Government for making a reference to the Authority.

5.

Examination of proposal.?

On receipt of the proposal under rule 4, if the Authority is satisfied that the proposal is in accordance with the purposes mentioned in rule 3 and the provisions of the Act, it shall inform the Central Government that the requesting entity may be allowed to perform Aadhaar authentication and thereafter, the Ministry or the Department of the Government of India or the State Government, as the case may be, may be authorised by the Central Government to notify the same accordingly.

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